

Sneharani Ramdas Zombade vs Ramdas Khandu Zombade on 20 June, 2024

2024:BHC - AUG:11610

973-MCA-89-2024.odt

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD

MISC.CIVIL APPLICATION NO. 89 OF 2024

Sneharani Ramdas Zombade
VERSUS
Ramdas Khandu Zombade
...

Mr. A. D. Sonkawade, Advocate for Applicant ...

CORAM : R.M. JOSHI, J
DATE : JUNE 20, 2024

PER COURT :

1. Though Respondent is served, none appears.

Hence, application to proceed in absence of Respondent.

2. This application is filed by the wife for seeking transfer of proceeding bearing no. A-50/2024 filed before Family Court, Aurangabad under Section 9 of the Hindu Marriage Act by Respondent/Husband.

3. It is the case of the Applicant that the marriage was performed between Applicant and Respondent on 15.04.2015 and two sons were born out of the said wedlock on 25.06.2016 and 19.11.2018 respectively. It is the contention of the Applicant that she was compelled to leave matrimonial home. Applicant filed proceedings under the Protection of Women from Domestic Violence Act bearing no. 18/2023 before JMFC, Washi, Dharashiv.

4. Respondent/husband filed proceedings under Section 9 of the Hindu Marriage Act before Family Court, Aurangabad. Applicant seeks transfer of the proceedings from Aurangabad to Dharashiv on the ground that she is resident of Tarkheda, Tq. Washi, Dist. Dharashiv. She claims that her both sons are studying and hence, it is practically not possible for her to attend the above proceedings at Aurangabad.

5. Though Respondent is served, none appeared. This shows Respondent has no inclination to oppose the application. In absence of any challenge to the case sought to be made out by the Applicant, this Court finds no reason not to accept the request of the Applicant.

6. In view of the above, application stands allowed in terms of prayer clause 'A'.

(R. M. JOSHI, J.) Malani